

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR

HOUSE BILL NO. 3718

By: Caldwell (Chad)

COMMITTEE SUBSTITUTE

An Act related to education; amending 70 O.S. 2021, Section 13-101.2, as last amended by Section 1, Chapter 246, O.S.L. 2025 (70 O.S. Supp. 2025, Section 13-101.2), which relates to the Lindsey Nicole Henry Scholarships for Students with Disabilities Program; requiring school districts to provide consent forms within certain time frame; requiring school districts to make an eligibility decision for special education services within certain time frame; determining student eligibility when required time frame is not met; including certain professional days and meetings as school days; providing maximum scholarship calculations for certain eligible students; requiring supplement of scholarship award after certain determination; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 13-101.2, as last amended by Section 1, Chapter 246, O.S.L. 2025 (70 O.S. Supp. 2025, Section 13-101.2), is amended to read as follows:

Section 13-101.2. A. There is hereby created the Lindsey Nicole Henry Scholarships for Students with Disabilities Program. The Lindsey Nicole Henry Scholarships for Students with Disabilities

1 Program is established to provide a scholarship to a private school
2 of choice for students with special needs who meet at least one of
3 the criteria of subparagraph a, b, c, d, e, f, or g of paragraph 1
4 of subsection B of this section. Scholarships shall be awarded
5 beginning with the 2010-2011 school year.

6 B. The parent or legal guardian of a student with a special
7 need may exercise his or her parental option and request to have a
8 Lindsey Nicole Henry Scholarship awarded for the child to enroll in
9 and attend a private school in accordance with this section and the
10 scholarship shall be awarded if:

- 11 1. a. the student has an individualized education program
12 (IEP), an individualized service plan (ISP), or meets
13 the eligibility standards for special education
14 services in accordance with the Individuals with
15 Disabilities Education Act (IDEA),
- 16 b. the student has had an individualized service plan
17 pursuant to Section 1-4-704 of Title 10A of the
18 Oklahoma Statutes any time prior to notifying the
19 State Department of Education of the intent to
20 participate in the program,
- 21 c. the student is a child of a member of the United
22 States Armed Forces who transfers to a school in this
23 state from out of state or from a foreign country

1 pursuant to a permanent change of station orders of
2 the parent,

3 d. the student was in out-of-home placement with the
4 Department of Human Services,

5 e. the student was adopted while in the permanent custody
6 of the Department of Human Services,

7 f. the student is enrolling or is enrolled in a school
8 that exclusively serves students experiencing
9 homelessness, or

10 g. the student was in out-of-home placement with the
11 Office of Juvenile Affairs; and

12 2. The parent or legal guardian has obtained acceptance for
13 admission of the student to a private school that is eligible for
14 the program as provided in subsection # I of this section and has
15 notified the State Department of Education of the request for a
16 scholarship. Requests to participate in the program made after
17 December 1 shall be granted, but funding for scholarships requested
18 after December 1 shall not be available until the beginning of the
19 next school year. The request shall be through a communication
20 directly to the Department in a manner that creates a written or
21 electronic record of the request and the date of receipt of the
22 request. The Department shall notify the school district in which
23 the student is enrolled, if applicable, upon receipt of the request.
24 For purposes of continuity of educational choice, the scholarship

1 shall remain in force until the student enrolls in a public school,
2 graduates from high school, or reaches the age of twenty-two (22),
3 whichever occurs first. At any time, the parent or legal guardian
4 of the student may remove the student from the private school and
5 place the student in another private school that is eligible for the
6 program as provided in subsection # I of this section or place the
7 student in a public school.

8 C. 1. a. Within five (5) days after receipt of a written
9 request from a parent or legal guardian for a special
10 education evaluation, a school district shall provide
11 the parent or legal guardian with a physical or
12 electronic evaluation consent form.

13 b. If the school district provides the evaluation consent
14 form within the five-day period required by
15 subparagraph a of this paragraph, the school district
16 shall complete the evaluation and make an eligibility
17 determination within forty-five (45) school days after
18 the date the school district receives the signed
19 consent form.

20 c. If the school district fails to provide the evaluation
21 consent form within the five-day period required by
22 subparagraph a of this paragraph, the school district
23 shall complete the evaluation and make an eligibility
24 determination within forty-five (45) school days

1 beginning on the sixth day after the date the school
2 district received the written request from the parent
3 or legal guardian.

4 d. If the school district fails to make an eligibility
5 determination within the applicable forty-five-school-
6 day period established under this subsection, the
7 student shall be deemed eligible for purposes of
8 receiving a Lindsey Nicole Henry Scholarship. For
9 purposes of this subsection, professional development
10 days and days on which parent-teacher conferences are
11 held shall be considered school days.

12 2. The maximum scholarship granted for a student found eligible
13 under this subsection shall be a calculated amount equivalent to the
14 total State Aid factors for the applicable school year multiplied by
15 the grade weight for which the student is eligible for the
16 applicable school year.

17 3. Once a school district reaches an eligibility decision and
18 determines that the student is eligible for special education
19 services, the student shall receive the remaining maximum
20 scholarship amount allowed under paragraphs 2 and 3 of subsection K
21 of this section.

22 D. A student shall be eligible for a scholarship if the parent
23 or legal guardian of the student made a request for a scholarship
24 for the 2010-2011 school year and the student transferred to an

1 eligible private school but was subsequently denied a scholarship
2 because the student did not have an IEP in effect on October 1,
3 2009, but did meet all other eligibility requirements as set forth
4 in the Lindsey Nicole Henry Scholarships for Students with
5 Disabilities Program Act.

6 ~~D.~~ E. A student shall not be eligible for a Lindsey Nicole
7 Henry Scholarship if the student is not having regular and direct
8 contact with the private school teachers at the physical location of
9 the private school.

10 ~~E.~~ F. School districts shall notify the parent or legal
11 guardian of a public school student with a special need of all
12 options available pursuant to this section and inform the parent or
13 legal guardian of the availability of information about the program
14 from the State Department of Education through the toll-free
15 telephone number or website. The notification shall be provided
16 with or included in the copy of the "Parents Rights in Special
17 Education: Notice of Procedural Safeguards" document given to
18 parents at least annually or as otherwise required by law.

19 ~~F.~~ G. Upon acceptance of a Lindsey Nicole Henry Scholarship,
20 the parent or legal guardian shall assume full financial
21 responsibility for the education of the student including, but not
22 limited to, transportation to and from the private school.

23 ~~G.~~ H. If the parent or legal guardian requests a Lindsey Nicole
24 Henry Scholarship and the student is accepted by the private school

1 pending the availability of a space for the student, the parent or
2 legal guardian of the student shall notify the State Department of
3 Education before entering the private school and before December 1
4 in order to be eligible for the scholarship during the school year
5 when a space becomes available for the student in the private
6 school. If notification is made after December 1, payment of the
7 scholarship shall not begin until the next school year.

8 ~~H.~~ I. 1. To be eligible to participate in the Lindsey Nicole
9 Henry Scholarships for Students with Disabilities Program, a private
10 school shall notify the State Department of Education of its intent
11 to participate. The notice shall specify the grade levels and
12 services that the private school has available for students with
13 special needs who are participating in the scholarship program. The
14 State Department of Education shall approve a private school as
15 eligible to participate in the scholarship program upon
16 determination that the private school:

- 17 a. meets the accreditation requirements set by the State
18 Board of Education or another accrediting association
19 approved by the State Board of Education. The State
20 Department of Education shall list on its website all
21 accrediting associations approved by the Board,
- 22 b. demonstrates fiscal soundness by having been in
23 operation for one (1) school year or providing the
24 State Department of Education with a statement by a

1 certified public accountant confirming that the
2 private school desiring to participate is insured and
3 the owner or owners have sufficient capital or credit
4 to operate the school for the upcoming year by serving
5 the number of students anticipated with expected
6 revenues from tuition and other sources that may be
7 reasonably expected. In lieu of a statement, a surety
8 bond or letter of credit for the amount equal to the
9 scholarship funds for any quarter may be filed with
10 the Department,

11 c. complies with the antidiscrimination provisions of 42
12 U.S.C., Section 2000d,

13 d. meets state and local health and safety laws and
14 codes,

15 e. will be academically accountable to the parent or
16 legal guardian for meeting the educational needs of
17 the student,

18 f. employs or contracts with teachers who hold
19 baccalaureate or higher degrees, or have at least
20 three (3) years of teaching experience in public or
21 private schools, or have special skills, knowledge, or
22 expertise that qualifies them to provide instruction
23 in subjects taught,
24

- g. complies with all state laws relating to general regulation of private schools, and
- h. adheres to the tenets of its published disciplinary procedures prior to the expulsion of a scholarship student.

2. Upon approval of a private school, the State Department of Education shall provide on its website all information and material submitted by the private school with its application.

~~I.~~ J. 1. Lindsey Nicole Henry Scholarship Program participants shall comply with the following:

- a. the parent or legal guardian shall select the private school from the schools approved for eligibility pursuant to subsection ~~H~~ I of this section and apply for the admission of the child,
- b. the parent or legal guardian shall request the scholarship no later than December 1 of the school year during which the scholarship is requested,
- c. any student participating in the scholarship program shall attend throughout the school year, unless excused by the school for illness or other good cause, and shall comply fully with the code of conduct for the school,
- d. the parent or legal guardian of a student who qualifies pursuant to subparagraph a of paragraph 1 of

1 subsection B of this section shall agree to meet
2 annually with a representative of the private school
3 to identify the services necessary to support the
4 special needs of the student participating in the
5 scholarship program,

6 e. the parent or legal guardian shall fully comply with
7 the parental involvement requirements of the private
8 school, unless excused by the school for illness or
9 other good cause, and

10 f. upon issuance of a scholarship warrant, the parent or
11 legal guardian to whom the warrant is made shall
12 restrictively endorse the warrant to the private
13 school for deposit into the account of the private
14 school. The parent or legal guardian may not
15 designate any entity or individual associated with the
16 private school as the attorney in fact for the parent
17 or legal guardian to endorse a warrant. A parent or
18 legal guardian who fails to comply with this
19 subparagraph shall forfeit the scholarship.

20 2. A participant who fails to comply with this subsection
21 forfeits the scholarship.

22 ~~J.~~ K. Provisions governing payment of a Lindsey Nicole Henry
23 Scholarship shall be as follows:
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1 1. The State Department of Education shall calculate the total
2 cost of all scholarships for all eligible students in the state.

3 The State Department of Education shall then reserve or retain from
4 the total amount appropriated to the State Board of Education for
5 State Aid purposes and any other revenue available for allocation
6 for State Aid purposes the total cost for all scholarship payments;

7 2. The maximum scholarship granted for an eligible student with
8 special needs shall be a calculated amount equivalent to the total
9 State Aid factors for the applicable school year multiplied by the
10 grade and disability weights for which the student is eligible for
11 the applicable school year. The disability weights used in
12 calculating the scholarship amount shall include all disability
13 weights which correspond to the disabilities included in the
14 multidisciplinary evaluation and eligibility group summary for the
15 student at the time the request for a scholarship is made by the
16 parent or legal guardian. The maximum scholarship amount shall be
17 calculated by the State Board of Education for each year the student
18 is participating in the scholarship program;

19 3. The amount of the scholarship shall be the amount calculated
20 in paragraph 2 of this subsection or the amount of tuition and fees
21 for the private school, whichever is less, minus up to two and one-
22 half percent (2 1/2%) of the scholarship amount which may be
23 retained by the State Department of Education as a fee for
24 administrative services rendered. If a private school does not

1 charge tuition, the amount of the scholarship shall be the amount
2 calculated in paragraph 2 of this subsection minus up to two and
3 one-half percent (2 1/2%) of the scholarship amount which may be
4 retained by the State Department of Education as a fee for
5 administrative services rendered. The amount of any assessment fee
6 required by the private school and the amount associated with
7 providing services and therapies to address the special needs of the
8 student may be paid from the total amount of the scholarship. The
9 amount of the scholarship shall be prorated to reflect the number of
10 days remaining in the current school year, if the scholarship
11 request is granted after the beginning of the school year;

12 4. The State Department of Education shall notify the private
13 school of the amount of the scholarship within ten (10) days after
14 receiving the request for a scholarship, when the total State Aid
15 factors have been determined for the current fiscal year. The
16 initial payment shall be made after the Department verifies
17 admission acceptance and enrollment. Quarterly payments shall be
18 made upon verification of continued enrollment and attendance at the
19 private school. Payment shall be made by the Department with an
20 individual warrant made payable to the parent or legal guardian of
21 the student and mailed by the Department to the private school that
22 the parent or legal guardian chooses. The parent or legal guardian
23 shall restrictively endorse the warrant to the private school for
24 deposit into the account of the private school;

1 5. The State Department of Education shall not be responsible
2 for any additional costs associated with special education and
3 related services incurred by the private school for the student
4 including the cost of teachers, equipment, material, and special
5 costs associated with the special education class;

6 6. The State Department of Education shall establish a toll-
7 free telephone number or website that provides parents or legal
8 guardians and private schools with information about the program;

9 7. The State Department of Education shall require an annual,
10 notarized, sworn compliance statement by participating private
11 schools certifying compliance with state laws and shall retain all
12 records received from a participating private school. The State
13 Department of Education shall post on its website the annual
14 compliance statement for each participating private school; and

15 8. The State Department of Education shall cross-check the list
16 of participating scholarship students with the public school
17 enrollments prior to each scholarship payment to avoid duplication.

18 ~~K.~~ L. 1. The State Superintendent of Public Instruction shall
19 deny, suspend, or revoke the participation of a private school in
20 the scholarship program if it is determined that the private school
21 has failed to comply with the provisions of this section. However,
22 in instances in which the noncompliance is correctable within a
23 reasonable amount of time and in which the health, safety, or
24 welfare of the students is not threatened, the Superintendent may

1 issue a notice of noncompliance which shall provide the private
2 school with a time frame within which to provide evidence of
3 compliance prior to taking action to suspend or revoke participation
4 in the scholarship program.

5 2. If the Superintendent intends to deny, suspend, or revoke
6 the participation of a private school in the scholarship program,
7 the Department shall notify the private school of the proposed
8 action in writing by certified mail and regular mail to the private
9 school's address of record with the Department. The Department
10 shall also notify any parents or legal guardians of scholarship
11 students attending the private school. The notification shall
12 include the reasons for the proposed action and notice of the
13 timelines and procedures set forth in this subsection.

14 3. The private school that is adversely affected by the
15 proposed action shall have fifteen (15) days from receipt of the
16 notice of proposed action to file with the Department a request for
17 an administrative hearing proceeding pursuant to the Administrative
18 Procedures Act.

19 4. Upon receipt of a request for a hearing, the State Board of
20 Education shall commence a hearing within sixty (60) days after the
21 receipt of the formal written request and enter an order within
22 thirty (30) days after the hearing.

23 5. The Board may immediately suspend payment of scholarship
24 funds if it is determined that there is probable cause to believe

1 that there is an imminent threat to the health, safety, or welfare
2 of the students or fraudulent activity on the part of the private
3 school.

4 ~~H.~~ M. No liability shall arise on the part of the state, the
5 State Board of Education, the State Department of Education, or a
6 school district based on the award or use of any scholarship
7 provided through the Lindsey Nicole Henry Scholarships for Students
8 with Disabilities Program.

9 ~~M.~~ N. The inclusion of private schools within options available
10 to public school students in Oklahoma shall not expand the
11 regulatory authority of the state or any school district to impose
12 any additional regulation of private schools beyond those reasonably
13 necessary to enforce the requirements expressly set forth in this
14 section.

15 ~~N.~~ O. If the State Department of Education determines that a
16 school district prior to August 26, 2011, has failed to comply with
17 the provisions of the Lindsey Nicole Henry Scholarships for Students
18 with Disabilities Program Act and has failed to make full or partial
19 scholarship payments for eligible students, the Department shall
20 have authority to reduce the amount of State Aid allocated to the
21 school district or require the school district to make repayment to
22 the Department of State Aid allocations in an amount equal to the
23 amount of scholarship payments the school district failed to make.
24 The Department shall make payment to the parent or legal guardian in

1 the amount the school district failed to make in the manner as
2 provided for in subsection ~~J~~ K of this section.

3 ~~Q.~~ P. The State Department of Education shall annually prepare
4 and post on its website a report of Lindsey Nicole Henry
5 Scholarships for Students with Disabilities Program. The annual
6 report shall include, but not be limited to, the following
7 information:

8 1. The total number and amount of scholarships awarded and
9 reported for each participating private school;

10 2. The total number of scholarships denied;

11 3. The total number and amount of scholarship payments
12 suspended for each participating private school; and

13 4. Data on participating students, disaggregated by years of
14 participation in the program, grade level, economically
15 disadvantaged status, racial and ethnic groups, and disability

16 SECTION 2. This act shall become effective November 1, 2026.

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